

in the place of the trustees (*d*). So where the trustees had a power of sale, "if they should consider it advisable, but not otherwise," it was held that the power, though discretionary in form, was given to the trustees for the purposes of the will, and if those purposes could not be effected without the exercise of the power, they were bound to exercise it (*e*).

*3. **Where trustees are required to do an act.** — [*614] The Court will not in general control the discretion of trustees in reference to the adoption of any particular species of investment (*a*). But where trustees were "authorized and *required*," with the consent and *direction* of the tenant for life, to invest in leaseholds, the clause was held to be imperative upon the tenant for life's demand, and the trustees were not even allowed to say that the leaseholds would impose personal liabilities upon themselves, for by being parties to the settlement they had engaged to do it (*b*). But where the trustees were *required* to lend money to the husband on his bond, and he took the benefit of the Insolvent Debtors Act, it was held that, under such altered circumstances, the trustees were justified in refusing a loan to the husband (*c*); and where a variation of securities was to be with the consent of the tenant for life, and the fund was in danger, the Court called in the fund, though the consent of the tenant for life was refused (*d*).

[4. **Maintenance of lunatic.** — Where property was held upon trust to pay the income in such a way, at such time, and in such manner, as the trustees should think fit towards the maintenance of a lunatic during her life, with power to invest any surplus not required for the purpose as capital, it was held that the trustees had no such discretion as would oust the jurisdiction of the Court, to apply the income in the

(*d*) *Tempest v. Lord Camoys*, 21 Ch. D. 576, note.

(*e*) *Nickisson v. Cockill*, 3 De G. J. & S. 622; 2 New Rep. 557.

(*a*) *Lee v. Young*, 2 Y. & C. C. C. 532.

(*b*) *Beauclerk v. Ashburnham*, 8 Beav. 322; *Cadogan v. Earl of Essex*, 2 Drew. 227.

(*c*) *Boss v. Godsall*, 1 Y. & C. C. C. 617.

(*d*) *Costello v. O'Rorke*, 3 I. R. Eq. 172.